



30
MINUTE
SKILLS

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Copyright Law 102

When and How Can You Use the Work of Others?

New England First Amendment Coalition
November 14, 2024

Copyright Law 101: Protecting Your Creative Work

• Purposes of copyright	• How long copyright lasts
• What copyright protects	• Copyright registration
• Exclusive rights of copyright holder	• Penalties for copyright infringement

Copyright Law 102: When and How Can You Use the Work of Others?

• Public domain works	• Fair Use and transformativeness
• Express permission	• Reuse of social media content
• Implied license	• Guidelines for safe practice

THE KEY QUESTION FOR COPYRIGHT 102:

When can you use someone else's copyrighted work?

- When the work is not protectable by copyright
- When the work is in the “public domain”
- When you have permission from the copyright owner
- When you are using the work in a way that qualifies as a “fair” use

THE KEY QUESTION:

When can you use someone else's copyrighted work?

- When the work is not protectable by copyright
 - Work is entirely factual or short phrases
 - *Remember:* Copyright protects expression, not facts
- When the work is in the “public domain”
- When you have permission from the copyright owner
- When you are using the work in a way that qualifies as a “fair” use

THE KEY QUESTION:

When can you use someone else's copyrighted work?

- When the work is not protectable by copyright
- When the work is in the “public domain”
 - Federal government works
 - Copyright term has expired
- When you have permission from the copyright owner
- When you are using the work in a way that qualifies as a “fair” use

THE KEY QUESTION:

When can you use someone else's copyrighted work?

- When the work is not protectable by copyright
- When the work is in the “public domain”
- When you have permission from the copyright owner
 - Express permission (e.g., license)
 - Implied permission
- When you are using the work in a way that qualifies as a “fair” use

Express Permission

- Written or oral license; may vary in formality
 - Some kind of writing is always preferable
- *Note:* Permission must come from the copyright holder, or from someone who has the authority to give permission on behalf of the copyright holder
 - Beware: wedding photos, family photos, celeb photos
 - Press agent might not have authority!



David L. Somers
@DL_Somers



Just landed in Vegas to see this...plane on fire on the Tarmac...people still onboard and running off!

7:16 PM - 8 Sep 2015

2,338 721



Andres Gonzalez
@andago101



@DL_Somers Andres here with CNN, Can we use your photo permanently on all our platforms and affiliates?

7:42 PM - 8 Sep 2015

16 3



Huw Borland
@SkyNewsHuw



@DL_Somers Is this your picture? If so, please can we use it for our coverage on Sky News (UK), obviously with a credit? Let me know, thanks

8:25 PM - 8 Sep 2015

1

EXPRESS LICENSE: YouTube terms of use – section 6(c)

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Photographer Morel Tweets Out Photos of Haiti Earthquake Survivors



Media Outlets Worldwide Publish the Newsworthy Photos



Photographer Morel Sues for Copyright Infringement

- Unlike YouTube, the Twitter TOS do not provide a license for AFP's conduct. So there is **no express license**.
- Does posting images on a social media website that allows nearly unlimited sharing grant an **implied license** to third-parties to use those images? (Can you publish tweeted photos without permission?)
- Photos were attributed to "morel" and "photomorel"
- **COURT SAYS: No.**
- **JURY SAYS ...**

\$1,220,000

(8 photos)

(2013 jury award)

IMPLIED PERMISSION:

Under what circumstances might you have *implied* (even though not express) permission to reproduce and display third-party content from social media platforms?

- A celeb posts her non-paparazzi photo on Instagram in what appears to be a calculated bid to promote a new movie or other endeavor
- A respectful photo of a missing child is posted on a GoFundMe page along with a plea for help locating the child or apprehending a suspect
- *Note:* These are judgment calls. Use your good judgment.

Use of content from the various social media platforms

The legal analysis:

There are two questions to answer: (1) Is it infringement to use the content from that platform? (2) If so, do you have permission?

1. Is it copyright infringement to reuse content posted on social media platforms?
 - **Linking** will always be okay. That's not considered a copyright issue. But it has the disadvantage of taking the reader away from your page.
 - Same goes for **retweeting** within the Twitter platform, regramming within Instagram.
 - But screenshots, taking audio or video clips, and right-click copying-and-pasting all implicate the copyright owner's exclusive rights of reproduction.
 - So you need permission from somewhere (person, license, terms of use)
 - What about **embedding**? Is embedding a form of copyright infringement?
 - One view (the "server test"): Embedding is not infringement because you don't **reproduce** the copyrighted work on your server. You are not infringing on the copyright holder's exclusive right to reproduce their work.
 - Opposing view (the "display test"): Embedding is infringement because you are infringing on the copyright holder's exclusive right to **display** their work. The law is unsettled, **but this view is on the ascendency**.
2. If the use is infringing: Do you have permission (express or implied) from the copyright holder (such as through terms of use, or context)
3. If no permission: Is it fair use? (See next section—we'll get there.)

THE KEY QUESTION:

When can you use someone else's copyrighted work?

- When the work is not protectable by copyright
- When the work is in the “public domain”
- When you have permission from the copyright owner
- When you are using the work in a way that qualifies as a “fair” use

When is “Fair Use” a Possible Defense?

“[T]he fair use of a copyrighted work ... for purposes such as criticism, comment, news reporting, teaching (including multiple copies for classroom use), scholarship, or research, is not an infringement of copyright.”

Fair Use: Factors

In determining whether the use made of a work in any particular case is a fair use, the factors to be considered shall include:

- (1) the **purpose** and **character** of the use, including whether such use is of a commercial nature or is for nonprofit educational purposes;
- (2) the **nature of the copyrighted work**;
- (3) the **amount** and **substantiality** of the portion used in relation to the copyrighted work as a whole; and
- (4) the **effect of the use** upon the potential **market** for or value of the copyrighted work.

FAIR USE Myths

1. Using someone's Facebook photo is fair game.
 - **Nope. You need permission** of the copyright holder.
 - Risk analysis may enter into the equation.
 - Beware: Copyright claims are often a stalking horse.
2. You can avoid copyright infringement by simply giving credit to the creator.
 - No, you need the copyright holder's *permission*.
 - Don't confuse *plagiarism* (passing off someone else's work as your own) with *copyright infringement* (using someone else's work without permission).
3. It's always permissible to embed a YouTube video.
 - Often, but not always.
 - Must be within the YouTube functionality.
 - If the video contains infringing content, you can't reproduce it.
4. Using less than 7 seconds of music as background, or 50 words of text in a book review, is permissible.
 - Not necessarily.

Is this fair use?



Is this fair use?

American Crisis

Get past the blame game. Ideas for how to move forward

Don't give in to despair — that's what autocrats thrive on



MARGARET SULLIVAN

NOV 11, 2024



341



189



72

Share



American Crisis
Can Journalism Save Democracy?

*A Podcast with
Margaret Sullivan*

*If it's not fair use,
why is Margaret Sullivan using it?*



She's rolling the dice!

Assessing risk – and taking mitigating measures

[This is art, not science. And not law.]

- Do you know who is the copyright owner?
- Have you tried to contact the copyright owner? (Only the copyright owner can sue for infringement.)
- Did the copyright owner deny permission?
- Does the copyright owner have a history of litigation?
- Is the work registered?
- Will the copyright owner (or kin/associate) be unhappy with the editorial coverage, or with the photo?
- As a general rule, do not remove copyright credit information.



BuzzFeed SPORTS: The 30 Funniest Header Faces

NEWS

ENTERTAINMENT

LIFE

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The 29 Funniest Header Faces



Header faces are right up there with [figure skating faces](#). Both are unfortunately hilarious.

posted on June 14, 2010 at 8:49am EDT

LAW & DISORDER / CIVILIZATION & DISCONTENTS

BuzzFeed sued for \$3.6 million over fairly boring soccer photo

Photographer has no lawyer, but huge damages create an incentive to sue.

by Joe Mullin - June 18 2013, 5:55pm EDT

NEWSLETTER COMMENTS 117



This photo of a soccer player heading the ball has become the subject of a lawsuit against BuzzFeed.

via Courtesy of Kai Eliselein

An Idaho photographer has sued the social media site BuzzFeed for \$3.6 million. The lawsuit says the site is liable for damages, not just for publishing the photographer's photo of a female soccer player heading a ball back in 2010 but for every one of the dozens of sites that ran the photo after BuzzFeed.

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AJAX Visual Studio Computer Science JQuery Lead
Developer Relational Databases J2EE Application
Servers Cloud Computing Objects Oriented
Programming

ars / jobs

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Developer Relational Databases J2EE Application
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LATEST FEATURE STORY



FEATURE STORY (1 PAGE)

In a world of me-first smart home gear, can smarthubs make them all play nice?

Review: We automate this old house with the
Revolv and SmartThings smarthubs.

WATCH ARS VIDEO



Tetris at the Philadelphia Cira Centre

Tetris at the Philadelphia Cira Centre

CTAV IN THE VIVID WIT

Better the sexual depravities of Prince than the sexual deprivations
of Michael Jackson, declares THISTAN VON
Pluis a special portrait for *lunatic hair* by ANDY WARHOL.

A few days after Mary Lou Retton won a gold medal at the Los Angeles Olympics, she appeared on *The Tonight Show* before Jane Rivers, who was cradled in ruffles. The no-nonsense asked the chemist about her new prosperity. The chemist replied that she was the proud owner of a new car. "A little red Corvette," she exclaimed, with the most wholesome smile in the world. Suddenly one was filled with alarm. Had American popular culture played a dirty trick on Mary Lou? If bad, if her reference was to Prince. "Little Red Corvette," you see, is a ballad of broken hearts and dirty condoms which Prince recorded a few years ago. "You're the kinda person / That believes in making out once / Love 'em and leave 'em fast / I guess I must be dumb / 'Cuz I had a pocket full of loaves / Toque and some of them soft / But it was Saturday night / I guess that makes it alright."

Who knows to such sentiments, and who does not, is not the point. The point is that escape from Prince is no longer possible. Finally he has arrived. The evidence is everywhere. The masses are good. His music is some of the tightest and most tasteful rock 'n' roll ever made. The movie *Purple Rain* is a crude movie classic, an American success to *The Hustler* *They Came*. The myths are all the night ones: young artist, lonely artist, battered child, mysterious stranger. There is even a motorcycle. From Minneapolis, Minnesota, there comes another tough but tender, violent but vulnerable American hero.

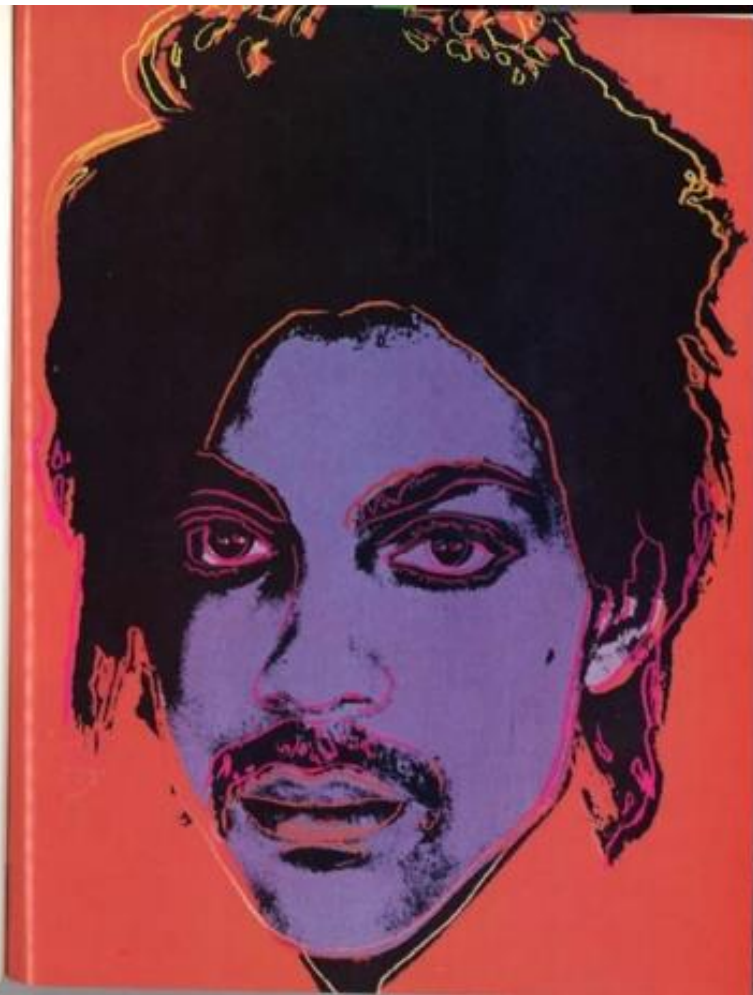
Well, not quite. Look again. "Rude Boy," he calls himself. The name suits. He dresses as a dandy or as a stud; in gloves and ruffles and a long hard purple duster, or in a sloping black codpiece and a cross. He poses against a backdrop of bedpillows, or shining ready on a bed. He sings, in a kind of filthy falsetto, about sexual climax ("...I wanna be your lover / I wanna be the only one that makes you come... running"), sexual confusion ("Hardly can't you understand? / Bambi it's better with a man"), sexual cross-dressing ("When you were mine / I used to let

you wear all my clothes"), and sexual combinations ("I never was the kind to make a fool / When he was there / Sinner between the two of us"). There are odes to masturbation, lots of them; and strange he sometimes writes, teasing and taunting on the hard black amplifiers, and the convulsions conclude with what used to be called, when Nijinsky did it at the end of *L'Après-midi d'un Faune*, an ascetic movement. Indeed, he looks rather like a faun—little body, satyr skin, trembling lips—until you see the eyes, and the mustache that has not grown in, and the gait. They are cold and they are mean.

Is this coarse creature really the favorite of American popular culture? Wait until Jerry Falwell hears. There will be hell to pay; and the upstate reverend might have a point. In fact, the protests have already begun—from liberals, who generally find out about the faun first. There are meetings about censure, Prince, it is said, hates women. No doubt he does, the sexual style he exemplifies is primarily an expression of anger. In his music, women are laid against their will. In his movie, they are beaten and tossed into the trash. (This is not the Minneapolis of Mary Tyler Moore.) There is no doubt, if it is the politics of culture that you want, that this inner-city star is a perfect star for the great era of American reaction that is open us. The re-objectification of women that John Travolta began on the backseat of a car in *Saturday Night Fever* has, well, climaxed in the songs and the scenes of Prince.

But leave politics; too much politics and there is no room for pleasure. Anyway, the path to pleasure is transparently not pretty. One woman's reintegration may be the image of another woman's desire. And men have been known to hunger for those who hate them, too. There is a measure of spiritual authenticity in desire. Better the low than the level. Better the sexual depravities of Prince than the sexual deprivations of Michael Jackson. (Prince will never find fun among parents.) His single-mindedness about sex means that he is serious about (Continued on page 120)

PURPLE FAME





Goldsmith
Photo



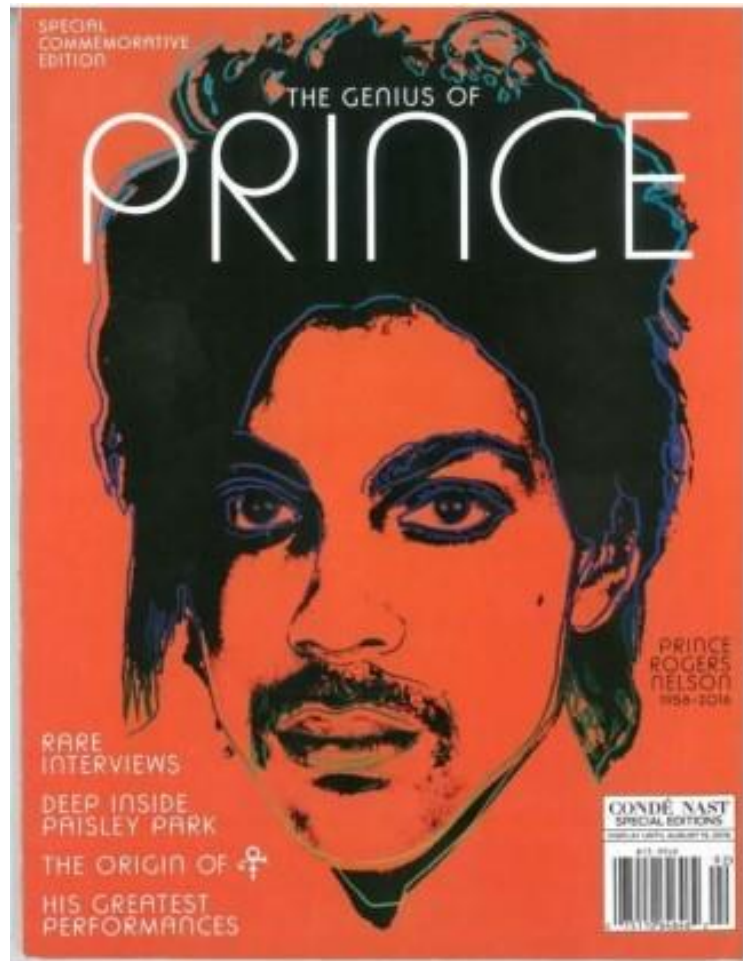
Conde Nast
commemorative
issue cover



SDNY:
Transformative,
Fair use

2d Cir Ct. App.:
Not transformative,
not a fair use

Sup. Ct.:
Not transformative



Four concluding thoughts

- Get valid permission whenever you can
- If relying on fair use,
 - Think about what is the **valid reason** you need to use this work—and use it only for that reason.
 - “It’s a better clip than I could create by myself” is not a qualifying answer.
 - Use **no more than necessary**.
 - Consider creative ways to make your use a “**comment**” on the original.
 - Virality of a concert video, reactions to a controversial tweet
- Carefully assess risk, considering the sensitivities involved, the subject matter of your use, the context and tone of the surrounding reporting, and the reputation for aggressiveness on the part of the copyright holder.
- Bring legal into the mix. Two heads are better than one.



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